

STATE OF NEW YORK
SUPREME COURT COUNTY OF NEW YORK
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ELVIS DOMINGUEZ, FANGGIE PIMENTHAL
and ANTHONY GARCIA,

Plaintiffs,

- against -

THE CITY OF NEW YORK,

Defendant.

SUMMONS

Index No.:

Date Filed:

*Plaintiff designates New York
County as the Place of Trial
The Basis of Venue is the
Defendant's residence.*

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or of the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: September 3, 2014
New York, New York

Yours, etc.



ANDREW F. PLASSE, Esq.
Attorney for the Plaintiff
Office and P.O. Address
352 7th Avenue, Suite 1222
New York, NY 10001
(212) 695-5811

DEFENDANT'S ADDRESS:
CITY OF NEW YORK, c/o Office of the Corporation Counsel, 100 Church Street, New York, NY 10007

STATE OF NEW YORK
SUPREME COURT COUNTY OF NEW YORK
-----X

**ELVIS DOMINGUEZ, FANGGIE PIMENTHAL
and ANTHONY GARCIA,**

Plaintiffs,

- against -

THE CITY OF NEW YORK,

Defendant.

COMPLAINT

Index No.:

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Plaintiffs, by their attorney, ANDREW F. PLASSE, Esq., as and for their
Complaint, hereby allege and show to the Court the following, all upon information and
belief:

1. At all times hereinafter mentioned, the plaintiff, Elvis Dominguez, is an individual and resides at 1405 Park Ave., New York, NY 10029.
2. At all times hereinafter mentioned, the plaintiff, Fanggie Pimenthal, is an individual and resides at 1405 Park Ave., New York, NY 10029.
3. At all times hereinafter mentioned, the plaintiff, Anthony Garcia, is an individual and resides at 1405 Park Ave., New York, NY 10029.
4. Upon information and belief, and at all times hereinafter mentioned, defendant City of New York, was and now is, a municipal corporation, existing under and incorporated under the laws of the State of New York, with its principal place of business located at the Municipal Building, One Centre Street, New York, NY 10007.
5. That heretofore the Plaintiff Elvis Dominguez caused a Notice of Claim, in writing, sworn to by and on behalf of the Plaintiff Elvis Dominguez, to be duly served

upon the defendant City of New York by delivering a copy thereof to the Office of the Corporation Counsel of the City of New York, which said Notice of Claim set forth the name and post office address of the said Plaintiff, the nature of the claim, the time when, the place where and the manner in which said claim arose and the items of damages or injuries claimed to have been sustained so far as then practicable; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

6. That heretofore the Plaintiff Fannie Pimental caused a Notice of Claim, in writing, sworn to by and on behalf of the Plaintiff Fannie Pimental, to be duly served upon the defendant City of New York by delivering a copy thereof to the Office of the Corporation Counsel of the City of New York, which said Notice of Claim set forth the name and post office address of the said Plaintiff, the nature of the claim, the time when, the place where and the manner in which said claim arose and the items of damages or injuries claimed to have been sustained so far as then practicable; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

7. That heretofore the Plaintiff Anthony Garcia caused a Notice of Claim, in writing, sworn to by and on behalf of the Plaintiff Anthony Garcia, to be duly served upon the defendant City of New York by delivering a copy thereof to the Office of the Corporation Counsel of the City of New York, which said Notice of Claim set forth the name and post office address of the said Plaintiff, the nature of the claim, the time when,

the place where and the manner in which said claim arose and the items of damages or injuries claimed to have been sustained so far as then practicable; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

8. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

STATEMENT OF FACTS

9. On or about September 4, 2013, at approximately 4:30 p.m., Plaintiff was outside 1405 Park Ave., New York, NY.

10. Plaintiff Elvis Dominguez was struck by an Unmarked Police Motor Vehicle operated by Police Officer Harish Mansharamani on the sidewalk in front of 1405 Park Ave., New York, NY.

11. Police Officer Harish Mansharamani had stopped the Plaintiff on numerous occasions prior to this date.

12. Police Officer Mansharamani chased the Plaintiff down the street, and struck him with the unmarked motor vehicle.

13. Police Officer Mansharamani then assaulted and battered the Plaintiff.

14. Plaintiff Elvis Dominguez was placed under arrest.

15. Plaintiff Elvis Dominguez did not resist arrest.

16. Plaintiff Elvis Dominguez was injured by the Police when he was arrested.

17. Plaintiff Elvis Dominguez was searched at the scene of the incident and no illegal items was found in his possession.

18. Plaintiff was taken to the 23rd Precinct where he was found to have bags of marijuana.

19. Police Officer Mansharamani wrote in his report that he stopped the Plaintiff in a stairwell, and that a struggle ensued and both himself and the Plaintiff fell down the stairs.

20. As a result, Plaintiff Elvis Dominguez sustained personal injuries.

21. On the aforesaid date, time and place, as Elvis Dominguez was being assaulted and battered by Police Officers, Plaintiff Fanggie Pimenthal, his mother, ran outside her home to the scene of the incident and saw a large crowd around her son.

22. Fanggie Pimenthal was stopped by Police Offices who pushed her and told her to get back.

23. Plaintiff Fanggie Pimenthal was pushed, assaulted and battered, and sustained other personal injuries

24. Plaintiff Fanggie Pimenthal observed her son being assaulted and battered in front of her.

25. On the aforesaid date, time and place, as Elvis Dominguez was being assaulted and battered by Police Officers, Plaintiff Anthony Garcia, his brother, ran outside his home to the scene of the incident and saw a large crowd around his brother.

26. Anthony Garcia was stopped by Police Offices who pushed him and told him to get back.

27. Plaintiff Anthony Garcia was pushed, assaulted and battered, and sustained other personal injuries

28. Plaintiff Anthony Garcia observed his brother being assaulted and battered in front of him.

29. The same officer who arrested the Plaintiff Elvis Dominguez had also harassed him on for prior occasions. .

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ELVIS DOMINGUEZ RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

30. That the employees of the defendant as aforesaid, in the scope of their employment as New York City Police Officers, assaulted and battered the plaintiff Elvis Dominguez causing him to sustain severe personal injuries.

31. That such conduct was committed in the scope of employment with the City of New York.

32. The City of New York is liable for the intentional torts committed by its employees in the scope of their employment pursuant to the doctrine of respondeat superior.

33. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ELVIS DOMINGUEZ RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

34. New York City owed a duty to Plaintiff to train and supervise and otherwise control its Police Officers in the proper methods of Use of Force incidental to this matter, and in the course of their Policing functions. New York City failed to provide adequate training, hiring, supervision and control for the Police Officers involved herein, and said failure constitutes negligence.

35. As a proximate result of the City of New York's negligence to provide adequate training, hiring, supervision and control of the Police Officers involved herein, Plaintiff has sustained personal injuries.

36. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ELVIS DOMINGUEZ RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

37. That the employees of the defendant as aforesaid jointly and severally assaulted and battered the plaintiff causing him to sustain severe personal injuries.

38. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ELVIS DOMINGUEZ RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

39. That the employees of the defendant as aforesaid jointly and severally falsely arrested the plaintiff causing him to sustain severe personal injuries.

40. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ELVIS DOMINGUEZ RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

41. That the employees of the defendant as aforesaid jointly and severally maliciously prosecuted the plaintiff causing him to sustain severe personal injuries.

42. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ELVIS DOMINGUEZ, RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

43. That the employees of the defendant as aforesaid jointly and severally intentionally inflicted emotional distress upon the plaintiff causing him to sustain severe personal injuries.

44. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANT

**CITY OF NEW YORK, PLAINTIFF ELVIS DOMINGUEZ, RESTATES AND
REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER
ALLEGES AS FOLLOWS:**

45. That the employees of the defendant as aforesaid jointly and severally negligently inflicted emotional distress upon the plaintiff causing him to sustain severe personal injuries.

46. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT CITY OF
NEW YORK, PLAINTIFF FANGGIE PIMENTHAL RESTATES AND
REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER
ALLEGES AS FOLLOWS:**

47. That the employees of the defendant as aforesaid, in the scope of their employment as New York City Police Officers, assaulted and battered the plaintiff Fanggie Pimenthal causing her to sustain severe personal injuries.

48. That such conduct was committed in the scope of employment with the City of New York.

49. The City of New York is liable for the intentional torts committed by its employees in the scope of their employment pursuant to the doctrine of respondeat superior.

50. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF FANNGIE PIMENTHAL RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRPAHS MARKED AND ENUMERATED “1-29” AND FURTHER ALLEGES AS FOLLOWS:

51. New York City owed a duty to Plaintiff to train and supervise and otherwise control its Police Officers in the proper methods of Use of Force incidental to this matter, and in the course of their Policing functions. New York City failed to provide adequate training, hiring, supervision and control for the Police Officers involved herein, and said failure constitutes negligence.

52. As a proximate result of the City of New York’s negligence to provide adequate training, hiring, supervision and control of the Police Officers involved herein, Plaintiff has sustained personal injuries.

53. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF FANGGIE PIMENTHAL RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRPAHS MARKED AND ENUMERATED “1-29” AND FURTHER ALLEGES AS FOLLOWS:

54. That the employees of the defendant as aforesaid jointly and severally falsely arrested the plaintiff causing him to sustain severe personal injuries.

55. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT

**CITY OF NEW YORK, PLAINTIFF FANGGIE PIMENTHAL, RESTATES AND
REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER
ALLEGES AS FOLLOWS:**

56. That the employees of the defendant as aforesaid jointly and severally intentionally inflicted emotional distress upon the plaintiff causing him to sustain severe personal injuries.

57. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT
CITY OF NEW YORK, PLAINTIFF FANNGIE PIMENTHAL, RESTATES AND
REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER
ALLEGES AS FOLLOWS:**

58. That the employees of the defendant as aforesaid jointly and severally negligently inflicted emotional distress upon the plaintiff causing him to sustain severe personal injuries.

59. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT CITY OF
NEW YORK, PLAINTIFF ANTONY GARCIA RESTATES AND REALLEGES
EACH AND EVERY ALLEGATION SET FORTH IN PARAGRPAHS MARKED
AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:**

60. That the employees of the defendant as aforesaid, in the scope of their employment as New York City Police Officers, assaulted and battered the plaintiff Fanggie Pimenthal causing her to sustain severe personal injuries.

61. That such conduct was committed in the scope of employment with the City of New York.

62. The City of New York is liable for the intentional torts committed by its employees in the scope of their employment pursuant to the doctrine of respondeat superior.

63. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT
CITY OF NEW YORK, PLAINTIFF ANTHONY GARCIA RESTATES AND
REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER
ALLEGES AS FOLLOWS:**

64. New York City owed a duty to Plaintiff to train and supervise and otherwise control its Police Officers in the proper methods of Use of Force incidental to this matter, and in the course of their Policing functions. New York City failed to provide adequate training, hiring, supervision and control for the Police Officers involved herein, and said failure constitutes negligence.

65. As a proximate result of the City of New York's negligence to provide adequate training, hiring, supervision and control of the Police Officers involved herein, Plaintiff has sustained personal injuries.

66. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ANTHONY GARCIA RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

67. That the employees of the defendant as aforesaid jointly and severally falsely arrested the plaintiff causing him to sustain severe personal injuries.

68. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ANTHONY GARCIA, RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

69. That the employees of the defendant as aforesaid jointly and severally intentionally inflicted emotional distress upon the plaintiff causing him to sustain severe personal injuries.

70. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF ANTHONY GARCIA, RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-29" AND FURTHER ALLEGES AS FOLLOWS:

71. That the employees of the defendant as aforesaid jointly and severally negligently inflicted emotional distress upon the plaintiff causing him to sustain severe personal injuries.

72. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands Judgment as follows:

I. Judgment on the First Cause of Action on behalf of Plaintiff Elvis Dominguez in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

II. Judgment on the Second Cause of Action on behalf of Plaintiff Elvis Dominguez in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

III. Judgment on the Third Cause of Action on behalf of Plaintiff Elvis Dominguez in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IV. Judgment on the Fourth Cause of Action on behalf of Plaintiff Elvis Dominguez in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

V. Judgment on the Fifth Cause of Action on behalf of Plaintiff Elvis Dominguez in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VI. Judgment on the Sixth Cause of Action on behalf of Plaintiff Elvis

Dominguez in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VII. Judgment on the Seventh Cause of Action on behalf of Plaintiff Elvis Dominguez in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VIII. Judgment on the First Cause of Action on behalf of Plaintiff Fanggie Pimental in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IX. Judgment on the Second Cause of Action on behalf of Plaintiff Fanggie Pimental in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

X. Judgment on the Third Cause of Action on behalf of Plaintiff Fanggie Pimental in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XI. Judgment on the Fourth Cause of Action on behalf of Plaintiff Fanggie Pimental in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XII. Judgment on the Fifth Cause of Action on behalf of Plaintiff Fanggie Pimental in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XIII. Judgment on the First Cause of Action on behalf of Plaintiff Anthony Garcia in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XIV. Judgment on the Second Cause of Action on behalf of Plaintiff Anthony Garcia in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XV. Judgment on the Third Cause of Action on behalf of Plaintiff Anthony Garcia in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XVI. Judgment on the Fourth Cause of Action on behalf of Plaintiff Anthony Garcia in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XVII. Judgment on the Fifth Cause of Action on behalf of Plaintiff Anthony Garcia in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XVIII. Together with the costs and disbursements of this action and for such other and further relief as to this Court seems just and proper.

DATED: September 3, 2014
New York, New York



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Attorney for the Plaintiff
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